

FEDERAL MARITIME COMMISSION

REVOCATION OF EXEMPTION FROM
46 U.S.C. § 40703 GRANTED TO
AMERICAN PRESIDENT LINES, LTD.
AND APL CO., PTE. LTD.

Docket No. 25-22

Served: August 21, 2025

BY THE COMMISSION: Rebecca F. DYE,
Daniel B. MAFFEI, Max M. VEKICH, *Commissioners.*

Order Revoking Exemption

On October 27, 2004, pursuant to 46 U.S.C. app. § 1715, the Federal Maritime Commission (the “Commission”) granted American President Lines, Ltd. and APL Co., Pte. Ltd., one ocean common carrier designated as “APL” and designated as a controlled carrier, an exemption from the publication requirements of 46 U.S.C. app. § 1708(c).¹ APL has since been removed from the Commission’s list of controlled carriers. As a result, the Commission is now revoking this exemption.

I. BACKGROUND

APL was designated as a controlled carrier on September 27, 2004, and added to the list of controlled carriers on May 10, 2005.² On October 27, 2004, the Commission granted APL an exemption

¹ These sections of the statute have since been renumbered to 46 U.S.C. §§ 40103 and 40703, respectively.

² See 70 FR 24581.

from 46 U.S.C. app. § 1708(a), which states that “a rate, charge, classification, rule, or regulation of a controlled carrier may not become effective, without special permission of the [Commission], until the 30th day after publication.” Docket No. P5-04, *Order Granting Petition*. This exemption allowed APL to reduce its tariff rates effective upon publication. On August 2, 2017, APL was removed from the controlled carriers list because CMA CGM S.A., a private company, bought APL.³

On May 30, 2025, the Commission published in the Federal Register a notice of intent to revoke the section 40703 exemptions to controlled carriers that were no longer on the Commission’s list of controlled carriers.⁴ The Commission invited comments on the proposed action; no comments were received in response to this notice.

II. DISCUSSION

The Commission has the authority under 46 U.S.C. § 40103 to grant exemptions for agreements or activities if the exemption will not result in a substantial reduction in competition or be detrimental to commerce. The requirements of 46 U.S.C. § 40703 specify that controlled carriers’⁵ rates, charges, classifications, rules or regulations may not become effective until the 30th day after publication, unless the Commission grants an exemption. In addition, “[t]he Commission may attach conditions to an exemption and may, by order, revoke an exemption.”⁶ In granting exemptions

³ See 82 FR 35946.

⁴ See 90 FR 23052.

⁵ 46 U.S.C. § 40102(9) (defining a controlled carrier as “an ocean common carrier that is, or whose operating assets are, directly or indirectly, owned or controlled by a government, with ownership or control by a government being deemed to exist for a carrier if—(A) a majority of the interest in the carrier is owned or controlled in any manner by that government, an agency of that government, or a public or private person controlled by that government; or (B) that government has the right to appoint or disapprove the appointment of a majority of the directors, the chief operating officer, or the chief executive officer of the carrier.”)

⁶ See 46 U.S.C. §§ 40103(a), 40704(a).

from section 40703, the Commission has declined to grant permanent exemptions because doing so would impinge on the Commission's authority to revoke them.⁷

In 2004, sections of the Shipping Act of 1984 were rearranged and renumbered. Exemptions from Section 9(c) of the Shipping Act that had been codified under 46 U.S.C. app. § 1708, allowing changes to controlled carriers' changes in rates, charges, classifications, rules or regulations to become effective more quickly than 30 days after publication with Commission permission, were moved to 46 U.S.C. § 40703. The statutory language of the two sections is nearly identical. In addition, previous Commission explanations suggest that the Commission did not view exemptions from section 40703 differently than exemptions from 1708.⁸ As such, the Commission has viewed the exemptions granted from section 1708 to be equivalent to the exemptions granted from section 40703.

APL is no longer on the Commission's list of controlled carriers; it was removed from the list because it had been acquired by a private company. As such, the exemption it was granted from

⁷ See, e.g., Petition of China Ocean Shipping (Group) Company for a Partial Exemption from the Controlled Carrier Act, Docket No. P3-99, *Order Granting Petition in Part* (April 1, 2004) ("The Commission declines to make this exemption permanent, as the Petition requests... a specific provision for 'permanence' of this Order would abrogate the Commission's authority under section 16 and its obligations under section 9 [of the Shipping Act of 1984]... The Commission retains its full authority to revoke the instant exemption subject to the requirements of section 16 of the Shipping Act of 1984, 46 U.S.C. app. § 1715.")

⁸ For example, in granting a section 40703 exemption for United Arab Shipping (S.A.G.) and Hainan P O Shipping Co., Ltd., the Commission stated that it "has previously granted exemptions from § 40703" and cited to some exemptions that were granted from section 40703 and to others that were granted from section 1708. See Petition of United Arab Shipping Company (S.A.G.) for an Exemption from 46 U.S.C. Section 40703, Docket No. P1-14, *Order Granting Petition* (July 16, 2015); Petition of Hainan P O Shipping Co., Ltd. for an Exemption from the First Sentence of Section 9(c) of the Shipping Act of 1984, Docket No. P1-10, *Order Granting Petition* (December 9, 2010).

46 U.S.C. § 40703 no longer applies because APL is no longer a controlled carrier. As a result, the Commission is revoking this exemption. The revocation of this exemption does not prevent APL from petitioning for the exemption again if its status changes.

III. CONCLUSION

The Commission hereby:

REVOKES the exemption from the requirements of 46 U.S.C. § 40703 granted to American President Lines, Ltd. and APL Co., Pte. Ltd. under 46 U.S.C. § 40103.

By the Commission.

David Eng
Secretary